

any and all arbitration proceedings, *including any petition to compel arbitration.*" (Declaration of Ariona Quijano in support of Motion to Compel Arbitration, Exhibit A, Article VII, § 7.2; emphasis added.) This specific incorporation of the FAA's procedural rules is what preempts CCP § 1281.2(c) regardless of whether the subsequent contract provision excluding CCP § 1281.2(c) is enforceable or not as Plaintiff also argues. *Mt. Diablo* is not applicable and Plaintiff's argument is entirely without merit even if it was supported by new or different facts, circumstances, or law.

The motion for reconsideration is denied in its entirety.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600810	STALLWORTH vs NEW DAY CHRISTIAN FELLOWSHIP CHURCH	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

Judicial Notice

New Day asks the Court to take judicial notice of its Statement of Information, filed 7/6/26 with the California Secretary of State. **The court grants the request for judicial notice of the document as to its existence, but not the truth of the matter, pursuant to Evid. Code § 452(d).**

New Day moves to strike Plaintiff's claim for punitive damages on two grounds: (1) that it is a religious corporation, and C.C.P. § 425.14 only allows a Plaintiff to bring a claim for punitive damages against a religious corporation after a court order, which Plaintiff here did not obtain; and (2) Plaintiff has not sufficient facts to support a claim for punitive damages against New Day.

C.C.P. § 425.14

Pursuant to C.C.P. § 425.14, "[n]o claim for punitive or exemplary damages against a religious corporation or religious corporation sole shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive or exemplary damages to be filed. The court may allow the filing of an amended pleading claiming punitive or exemplary damages on a motion by the party seeking the amended pleading and upon a finding, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established evidence which substantiates that plaintiff will meet the clear and convincing standard of proof under Section 3294 of the Civil Code." (C.C.P., § 425.14.)

Here, New Day submits a Statement of Information it filed to show it is a “religious corporation.” (RFJN; Li Decl., Ex. C.) However, nowhere in that document does it state that New Day is a religious corporation (as opposed to a non-profit corporation). Additionally, even if it did, the Court can only take judicial notice of the existence of the document, not the truth of the matter contained therein. As Plaintiff does not allege in the Complaint that New Day is a religious organization, based on the pleadings and judicially noticed facts, it is unclear if C.C.P. § 425.14 applies. If Plaintiff contends that New Day is a religious institution, then Plaintiff must bring a motion pursuant to C.C.P. section 425.14 to obtain a court order allowing assertion of a claim for punitive damages, but at this point, as stated, it is unclear if section 425.14 applies.

The Claim for Punitive Damages Is Not Sufficiently Stated

A plaintiff may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).) “Malice” means either the defendant intended to cause injury to plaintiff or the defendant’s conduct was “despicable” and carried on with a willful and conscious disregard of the rights and safety of others. (Civ. Code, § 3294(c)(1).) “Oppression” is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civ. Code, § 3294(c)(2).) “Despicable conduct” is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715.)

Claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29; *Grieves v. Sup. Ct.* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Rather, the pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

Plaintiff alleges New Day was aware of Holcomb’s dangerous propensities because numerous same or similar incidents had occurred on the Premises previously, and hired Holcomb and allowed her to be on the Premises anyway. (Complaint at ¶¶ 17, 51-52.) These allegations are insufficient to support a claim for punitive damages, as they do not establish despicable conduct, that New Day was aware of the probable dangerous consequences of its actions, or that New Day willfully disregarded those consequences. While Plaintiff also alleges that New Day had “(1) actual knowledge of the peril/danger they subjected Plaintiff to; (2) actual knowledge of the probability that Plaintiff would in fact be injured as a result of said defendants misconduct/omission; and (3) a conscious decision to subject Plaintiff to said probability of injuries and harm and/or a conscious decision not to act to prevent Plaintiff from being injured and harmed [Complaint at ¶ 56], such conclusory allegations are insufficient to support a claim for punitive damages.

(See, *Brousseau, supra*, 73 Cal.App.3d at 872.) Therefore, Plaintiff's punitive damages claim is not sufficiently stated.

The motion to strike is granted with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first, because the claim for punitive damages is not sufficiently stated.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than 5:00 p.m. on July 16, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601298	HAGER vs ADJUSTFIRST, INC.	DEMURRER ON COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

Demurrer to Entire Complaint on Ground of Misjoinder (Code Civ. Proc., § 430.41(d))

Misjoinder of parties may be challenged by a special demurrer, pursuant to Code of Civil Procedure section 430.10, subdivision (d), which provides in relevant part: "The party against whom a complaint ... has been filed may object, by demurrer ... to the pleading on ... the following grounds: ...[¶]... (d) There is a defect or misjoinder of parties." (Code Civ. Proc., § 430.10(d).) Demurrer on the ground of misjoinder lies if the defect appears on the face of the complaint or matters judicially noticed. (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 198, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2002) ¶¶7:78-7:83.2.) "Although the code seems to authorize the sustaining of a demurrer solely on such a technical objection [of misjoinder], the authorities indicate that the defendant is entitled to a favorable ruling only when he can show some prejudice suffered or some interests affected by the misjoinder. [Citation.]" (*Ibid.*) Here, Sevilla claims that the Complaint is subject to a demurrer based on misjoinder because there are no allegations in the Complaint to impose any individual liability against him. However, the sufficiency of each cause of action should be examined individually as to whether a claim has been stated, not based on a general observation that Plaintiff's failure to state sufficient facts justifies a challenge as to the entire pleading based on misjoinder. **Defendant's demurrer to the entire Complaint based on the ground of misjoinder is overruled.**

Demurrer to Entire Complaint on Ground of Uncertainty

"[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citation.]" (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) "Even